

INDUSTRIAL RELATIONS

After you engage with this Junior Certificate Business Studies AIB Future Sparks series, your understanding and knowledge of the topics below will be reinforced from your prior learning in your classroom. This handy resource, allied with the video series, should be used as a tool to revise. **Keep it safe and it will be an invaluable asset before exams!**

Learning Outcomes:

- 2.4 Distinguish between the rights and responsibilities of the employer and employee from a legal, social, environmental and ethical perspective.

Right now, can I...?	Circle the emoji that represents how you feel about this topic
Define industrial relations	  
Explain why employees might want to join a trade union	  
Explain the different types of industrial action	  
List and explain the laws that protect employees	  

INDUSTRIAL RELATIONS

AIB Future Sparks Video Series – Little Sparks - Industrial Relations



What are industrial relations?	The relationship between the employer and employee
What is a trade union?	A group that represents workers and speaks on their behalf
What is a shop steward?	The representative of a union in a workplace
In a business, why is it important to have good industrial relations?	Improve employee motivation
What might an employee and employer have a dispute over?	Pay, working conditions, redundancy, holidays, discrimination
When is it unfair for an employer to dismiss an employee?	late to work once Not given a warning
What are the duties of a trade union?	Fight for fair pay and working conditions and protect the rights and interests
How can an industrial dispute be solved non-legislative?	Talk it out without laws
Name 4 types of legal industrial action that an employee may take.	Strike, no overtime, work to rule, go slow

Hello Hello Hello Hello Hello Hello Hello Hello

INDUSTRIAL RELATIONS

AIB Future Sparks Video Series Unit 1 Industrial Relations Animation



Name 2 types of illegal industrial action an employee may take.	Lightning strike, political strike
Under the Unfair Dismissals Act 1977-2015, when can an employee appeal their dismissal?	If an employee can't prove it's fair Incorrect procedures
When can an employee be fairly dismissed?	Illegal industrial action, repeated offenses
Under the Employment Equality Act, when is it illegal to discriminate against an employee?	Always (sexual orientation, religion, gender, family)
Name 2 functions of the WRC.	Workplace relations commission (conciliation)
What is the Labour Court?	Last resort
Why are good industrial relations important in a business?	

INDUSTRIAL RELATIONS

Industrial Relations

What are industrial relations? The relationship between employers and employees is called an industrial relation. When things aren't going so well between employers and employees, we might have an industrial dispute.

ACTIVITY 1: Industrial Disputes – Fill in the Blanks

Enter the following reasons for industrial disputes into the table below to match its description.

Demarcation disputes	Union recognition	Dismissal of workers	Working conditions
Unequal treatment	<u>Wage disputes</u>	Rights not being met	

unFAIR = unequal
Fair = equal

REASONS FOR INDUSTRIAL DISPUTES	DESCRIPTION
Working conditions	The physical conditions of the workplace are not safe for the employees.
Dismissal of workers	Workers are unfairly dismissed or dismissed for no apparent reason.
Unequal treatment	^{equal} Unfair treatment in the workplace e.g., discriminations, bullying and harassment.
Wage disputes	Incorrect wage rates are being paid e.g., not getting paid the minimum wage.
Union recognition	Not being allowed to join a trade union or, the employer is refusing to accept that employees are in a trade union.
Demarcation disputes	These are disputes arising when an employer asks some employees to do the work of other employees, thus endangering the other employees' jobs.
Rights not being met	Statutory conditions of employment not being met e.g., holiday time, maternity leave, regular breaks.

INDUSTRIAL RELATIONS

ACTIVITY 2: Trade Unions

A trade union is an organisation set up by employees to improve their interests. Examples of trade unions in Ireland include ASTI (Association of Secondary Teachers of Ireland) and SIPTU (Services Industrial Professional and Technical Union). A shop steward is the local union representative, elected by members, who negotiates with management and ensures that agreements are kept. They organise meetings of union members to keep them up to date with developments. They also recruit new members for the union.

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Why do you think employees like to join trade unions?	Because it is an organisation that represents them and will negotiate to solve problems they have
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Use your knowledge of industrial relations to match the following sentences to the correct terms by placing a tick ✓ in the box.

	OFFICIAL STRIKE	WORK-TO-RULE	OVERTIME BAN	GO SLOW
Employees will only do the exact work that they were employed to do.		✓		
Employees refuse to do any overtime required by their employer.			✓	
Employees do their work but do so as slowly as possible.				✓
Employees stop working and place a picket on the employer. They have the backing of the trade union and the ICTU (Irish Congress of Trade Unions).	✓			

INDUSTRIAL RELATIONS: EMPLOYMENT LAWS

There are many laws protecting employees including:

- Protection of Young Persons (Employment) Act 1996
- Employment Equality Acts 1998 – 2011
- Unfair Dismissals Act 1977 – 2007
- Industrial Relations Act 1990
- Workplace Relations Act 2015

PROTECTION OF YOUNG PERSONS (EMPLOYMENT) ACT 1996	EMPLOYMENT EQUALITY ACTS 1998 – 2011
• Protects workers under 18 years of age • Protects workers under 18 years of age engaging in night work • Restrictions on number of hours worked • Responsibilities of employers of workers under the age of 18: Keep employee details, see a copy of employee's birth cert, get a letter from employee's guardian/parent who states that they consent to them working	• Workers should not be discriminated against. Discrimination means one person is treated in a less favourable way than another. • States there should be no discrimination at any point of the employment process including hiring and firing, equal pay, promotion, dismissal, conditions of work, advertising for employees. • Nine grounds of discrimination: age, gender, race, sexual orientation, religion, family status, marital status, disability, membership of the travelling community
UNFAIR DISMISSALS ACT 1977 – 2007	INDUSTRIAL RELATIONS ACT 1990
Act that employees cannot be dismissed for the following reasons: Age, pregnancy, religious beliefs, political beliefs, race, sexual orientation, being a member of the travelling community, being a member of a trade union, taking part in an official strike, taking legal proceedings against an employer. The act states that the following are valid reasons for dismissal: incompetence, misconduct, redundancy, do not have the necessary qualifications needed to do the job	Employees engaging in industrial action cannot be stopped or sued by the employer for losses because of industrial action, provided the employees held a secret ballot and gave the employer one week's notice of the industrial action.
WORKPLACE RELATIONS ACT 2015	
Set up the Workplace Relations Commission (WRC), an independent statutory body. The WRC improves the workplace relations between employers and employees. Ensure employers obey all employment law. Aids the resolution of disputes by assisting in talks between employers and employees	

INDUSTRIAL RELATIONS: EMPLOYMENT LAWS

ACTIVITY 3: Employment Laws

(A) In each of the cases below, tick whether an employee being terminated from their job are fairly dismissed or unfairly dismissed:

THE EMPLOYEE HAS BEEN DISMISSED BECAUSE:	FAIR DISMISSAL	UNFAIR DISMISSAL
They lied about their qualifications on their C.V. to the employer		
They are pregnant		
The company is winding down and will no longer be in operation		
They believe in a different religion to that of the employee		
They are repeatedly late and absent		
They are a member of the travelling community		

(B) Which laws are being described below?

This law protects employees against discrimination:	
This law protects young people at work:	
This law aids the resolution of disputes by assisting in talks between employers and employees:	

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RESEARCH ASSIGNMENTS

Write a short piece for your local newspaper advertising a Trade Union that you are familiar with. Remember to state the group of employees that it represents.

Fórsa represents over 80,000 public service workers, including teachers, council staff, nurses and civil servants. The union fights for fair pay, safe workplaces and respect on the job. If you work in public service, Fórsa can protect you.

Draw the logo of the Trade Unions here so that the newspaper can use it for your piece.

FÓRSA

FINANCIAL LITERACY

A major cause of industrial relations conflict can be pay/wage related so it is vital that every worker can understand and is able to read and check their payslips.

Task 1: Complete the table below

EMPLOYEE NUMBER	WEEKLY HOURS	HOURLY RATE	WEEKLY SALARY	MONTHLY SALARY (WEEKLY X 4)	YEARLY SALARY (WEEKLY X 52)
		€	€	€	€
1	22	12.50			
2	26	12.75			
3	28	13.00			
4	10	14.50			
5	30	15.57			
6	32	16.55			
7	24	17.83			
8	38	12.95			
9	33	21.65			
10	40	34.43			

FINANCIAL LITERACY

Task 2: Complete the payslips below

- (A) Helen Roche's weekly wage is €800. Her tax credit is €80 a week. She pays income tax at the rate of 20%. For week number 6, her P.P.S. number is 8772456T and her employee number is 00024. Weekly PRSI is €30 and she pays her union fees of €12 a week.

Workings	
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P.P.S. NO.	EMPLOYEE NO.	NAME	PAYMENT PERIOD
GROSS PAY DETAILS	AMOUNT	DEDUCTIONS	AMOUNT
Basic		Tax	
Overtime		PRSI	
		Pension	
		Union Fees	
		Health Ins.	
		Total Deductions	
TOTAL GROSS PAY		NET PAY	

FINANCIAL LITERACY

Task 2: Complete the payslips below

- (B) John Costello's gross pay for the year is €34,800. His tax credit is €2,585. He pays income tax at the rate of 20%. For his yearly payslip, his P.P.S. number is 3665286I and his employee is 04236. Yearly PRSI is €2,340 and he pays weekly his union fees of €15 and weekly health insurance €20.

3	
4	
5	
6	
7	

P.P.S. NO.	EMPLOYEE NO.	NAME	PAYMENT PERIOD
GROSS PAY DETAILS	AMOUNT	DEDUCTIONS	AMOUNT
Basic		Tax	
Overtime		PRSI	
		Pension	
		Union Fees	
		Health Ins.	
		Total Deductions	
TOTAL GROSS PAY		NET PAY	

FINANCIAL LITERACY

Task 2: Complete the payslips below

- (C) Evie Carry's gross pay for week number 10 is €1,300 which includes €200 for overtime. Her tax credit is €56. She pays income tax at the rate of 20%. For her payslip, her P.P.S. number is 3882479I and her employee number is 3245. Her weekly PRSI is €27 and she pays €15 into her pension, her union fees of €14 a week, and her weekly health insurance is €10.

Workings	
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P.P.S. NO.	EMPLOYEE NO.	NAME	PAYMENT PERIOD
GROSS PAY DETAILS	AMOUNT	DEDUCTIONS	AMOUNT
Basic		Tax	
Overtime		PRSI	
		Pension	
		Union Fees	
		Health Ins.	
		Total Deductions	
TOTAL GROSS PAY		NET PAY	

EXTENSION ACTIVITIES:

Unscramble

	UNSCRAMBLE ME!	KEYWORD
1	SNMOEOACTPIN	
2	ONTIMNOILARCCSKIOEARPSLEOSMW	
3	FAIR DSASMISLI	
4	AOITNEIOTNG	
5	ELYMEPEO	
6	EPNOEYLTMM NTIIMRINOASDCI	
7	TRADE IOUNN	
8	TSEIK	
9	IYBNLPSRSIEOTI	
10	GRIHT	
11	RANUIF ISSALSIMDS TCA	
12	MLNPYOEETM LUTAYIQE SACT	
13	OPLREEYM	
14	AUISNITRLD AICONT	
15	NIOM	
16	ÓSRAF	
17	EATDMNA	
18	PTSIU	
19	LRUOBA UTRCO	
20	PSHO ERAWTSD	